



Notification Waiver Determination

National Reconstruction Fund Corporation – Southern Launch

Acquisition	National Reconstruction Fund Corporation (NRFC) applied for a notification waiver in respect of its proposed acquisition of a minority interest in SouthernLaunch.Space Pty Ltd (Southern Launch), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	16 July 2026

Parties to the Acquisition	The acquirer, NRFC, is a corporate Commonwealth entity which has the object of facilitating increased flows of finance into priority areas of the Australian economy. The target, Southern Launch, is an Australian aerospace company providing mission services for orbital launch, and suborbital missions including hypersonic flight, and orbital re-entries, as well as range services, for the global space industry. The company is headquartered in Adelaide and operates two spaceports at Koonibba and Whalers Way.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. NRFC will have a small interest in Southern Launch post-Acquisition b. there is a small horizontal overlap between NRFC's other investments and Southern Launch relating to the supply of spacecraft and satellite launch services in Australia, and NRFC holds minority interests in these companies. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.

	The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**